

24NNCV02043 24NNCV02043

County: los-angeles

Division: Civil Law and Motion

Department: X

Hearing date: 2026-07-07

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Case Number: 24NNCV02043 Hearing Date: July 7, 2026 Dept: X

#8 - PAUL ROGER JIMENEZ vs CITY OF SOUTH EL MONTE, et al.

The demurrer is overruled in its entirety. (Am. Motorcycle Assn. v. Superior Ct. (1978) 20 Cal.3d 578, 584 ["a named defendant is authorized to file a cross-complaint against any person, whether already a party to the action or not, from whom the named defendant seeks to obtain total or partial indemnity"], *italics added*. See *Ambriz v. Kress* (1983) 148 Cal.App.3d 963, 969-970 [Defendant was not barred from seeking contribution from one of the plaintiffs simply because the cross complaint against that plaintiff was framed in terms of equitable indemnity].)

A responsive pleading is due within 10 days of service of the notice of ruling.

Unless waived by the parties, Moving Party is to give notice.